

Tottenham Corporation Act, 1952

15 & 16 GEO. 6 & 1 ELIZ. 2 Ch. xxxii

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CHAPTER xxxii

An Act to empower the mayor aldermen and burgesses of the borough of Tottenham to appropriate and use certain common or waste lands to execute works for the improvement of the drainage of the borough to make further and better provision for the health local government and improvement of the borough and for other purposes.
[1st August 1952.]

WHEREAS—

(1) The borough of Tottenham (in this Act called “the borough”) in the county of Middlesex is a municipal borough under the government and local management of the mayor aldermen and burgesses of the borough (in this Act called “the Corporation”):

(2) By a scheme of the Inclosure Commissioners for England and Wales certified pursuant to the Metropolitan Commons Acts 1866 and 1869 and bearing date the thirtieth day of December one thousand eight hundred and eighty-one and confirmed by the Metropolitan Commons Supplemental Act 1882 the commons known as West Green Page Green and The Green or Tottenham Green and certain plots or strips of waste or common land situate within the borough (hereinafter referred to as “the commons”) were (inter alia) placed under the regulation and management of the Tottenham Local Board for purposes of open spaces saving however estates interests or rights of a profitable or beneficial nature in over or affecting the commons and specifically certain rights claimed by the lord of the manor and the said scheme stated that the owners and occupiers of freehold and copyhold lands in the parish of

Tottenham claimed rights of common of pasturage over the commons:

(3) The Corporation have purchased the freehold and aforementioned rights of the lord of the manor of Tottenham in the commons but no other rights and the rights of common (if any) of the owners of lands in the said parish of Tottenham and of the occupiers of such lands have long since ceased to be exercised and in fact cannot now be profitably exercised:

(4) It is expedient that the commons should vest in the Corporation freed and discharged from all rights (if any) still outstanding in or in respect of the commons:

(5) It is expedient that further powers in relation to the commons be conferred upon the Corporation:

(6) It is expedient to authorise the Corporation to execute the drainage works referred to in this Act and to acquire land in the borough and the borough of Hornsey for the purpose of such works and for other purposes and to confer further powers upon the Corporation in regard to lands:

(7) It is expedient to make further provision with reference to the health local government and improvement of the borough:

(8) It is expedient that the other provisions contained in this Act be enacted:

(9) The purposes of this Act cannot be effected without the authority of Parliament:

(10) Estimates have been prepared by the Corporation for and in connection with the following purposes:—

The purchase of lands and easements under the powers of this Act and the execution of the drainage works authorised by this Act		£661,000
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(11) The several works included in such estimates respectively are permanent works and it is expedient that the Corporation should be empowered to borrow money for those purposes as provided by this Act:

(12) In relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act 1933 have been observed:

(13) Plans and sections showing the lines and levels of the works authorised by this Act and showing the lands required or which may be taken for the purposes or under the powers of this Act and also a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands were duly deposited with the clerk of the county council of the administrative county of Middlesex

which plans sections and book of reference are in this Act respectively referred to as the deposited plans sections and book of reference:

May it therefore please Your Majesty that it may be enacted and be it enacted by the Queen's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

PART I

PRELIMINARY

1.—(1) This Act may be cited as the Tottenham Corporation Act 1952. Short and collective titles.

(2) The local Acts as hereinafter defined and this Act may be cited jointly as the Tottenham Corporation Acts and Orders 1888 to 1952.

2. This Act is divided into Parts as follows:—

Division of
Act into Parts.

- Part I.—Preliminary.
- Part II.—Common and waste lands.
- Part III.—Lands.
- Part IV.—Drainage works.
- Part V.—Sanitation and buildings.
- Part VI.—Smoke nuisance.
- Part VII.—Finance.
- Part VIII.—Miscellaneous.
- Part IX.—General.

3. The following Acts and parts of Acts (so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act) are hereby incorporated with this Act with the following exceptions and modifications (namely):—

- (a) the Lands Clauses Acts except sections 92 and 127 to 132 of the Lands Clauses Consolidation Act 1845 and the words “with two sufficient sureties to be approved of by two justices in case the parties differ” in section 85 of that Act and except section 5 of the Lands Clauses Consolidation Acts Amendment Act 1860;
- (b) the provisions of the Railways Clauses Consolidation Act 1845 with respect to the temporary occupation of lands near the railway during the construction thereof and section 16 of that Act:

PART I
—cont.

Provided that—

- (i) in and for the purposes of this Act the expressions “the undertakers” or “the promoters of the undertaking” or “the company” used in such incorporated enactments shall mean the Corporation;
- (ii) for the purposes of the said section 85 of the Lands Clauses Consolidation Act 1845 as incorporated with this Act the Corporation shall be deemed to be a railway company and section 36 (except paragraph (4) thereof) of the Railway Companies Act 1867 shall apply accordingly;
- (iii) for the purposes of the incorporated provisions of the Railways Clauses Consolidation Act 1845 “the railway” shall mean the works by this Act authorised to be constructed by the Corporation and the centre lines of the said works as shown on the deposited plans shall be deemed to be the centre of the railway;
- (iv) in their application to the works authorised by section 23 (Power to execute works) of this Act the incorporated provisions of the Railways Clauses Consolidation Act 1845 shall have effect as if the words “and not being a garden orchard or plantation attached or belonging to a house nor a park planted walk avenue or ground ornamentally planted and not being nearer to the mansion house of the owner of any such lands than the prescribed distance or if no distance be prescribed then not nearer than five hundred yards therefrom” were omitted from section 32 of that Act.

Interpretation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by sections 90 110 and 343 of the Public Health Act 1936 have the same respective meanings unless there be something in the subject or context repugnant to such construction.

(2) In this Act unless the subject or context otherwise requires the several words and expressions to which meanings are assigned by the Acts wholly or partially incorporated with this Act shall have the same respective meanings And—

“the Act of 1890” means the Tottenham Local Board Act 1890;

“the Act of 1933” means the Local Government Act 1933;

“the Act of 1936” means the Public Health Act 1936;

“the appointed day” has the meaning assigned to it by section 63 (The appointed day) of this Act;

“the borough” means the borough of Tottenham;

- “ the commission ” means the British Transport Commission and any reference to the commission in relation to any functions of the commission which are for the time being delegated to an executive in pursuance of section 5 of the Transport Act 1947 shall be construed as a reference to that executive ;
- “ the commons ” means Ducketts Common High Cross Common Page Green Common Page Green Terrace Common Grove Place Common Tottenham Green East Tottenham Green West Green Gate Common West Green Common and such of the strips of waste or common land referred to in the scheme as are situate within the borough and are shown on the deposited plans ;
- “ contravention ” includes a failure to comply and “ contravene ” shall be construed accordingly ;
- “ the Corporation ” means the mayor aldermen and burgesses of the borough ;
- “ the council ” means the council of the borough ;
- “ the county council ” means the county council of the administrative county of Middlesex ;
- “ daily penalty ” means a penalty for each day on which an offence is continued after conviction therefor ;
- “ the electricity authority ” means the British Electricity Authority ;
- “ enactment ” includes an enactment in this Act or in any general or local Act and any order byelaw or regulation for the time being in force within the borough ;
- “ the gas board ” means the Eastern Gas Board ;
- “ the general rate fund ” and “ the general rate ” mean respectively the general rate fund and the general rate of the borough ;
- “ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Acquisition of Land (Assessment of Compensation) Act 1919 by Part V of the Town and Country Planning Act 1947 by the Lands Tribunal Act 1949 and by this Act ;
- “ the local Acts ” means the local Acts specified in Part I of the First Schedule to this Act and the Orders specified in Part II of that schedule and so much of the confirming Acts specified in that Part as relates to those Orders ;
- “ the Minister ” means the Minister of Housing and Local Government ;

PART I
—cont.

“ the scheme ” means the scheme with respect to the Tottenham commons certified by the Inclosure Commissioners for England and Wales pursuant to the provisions of the Metropolitan Commons Acts 1866 and 1869 dated the thirtieth day of December one thousand eight hundred and eighty-one and confirmed by the Metropolitan Commons Supplemental Act 1882 ;

“ telegraphic line ” has the same meaning as in the Telegraph Act 1878 ;

“ the town clerk ” “ the medical officer ” “ the surveyor ” and “ the sanitary inspector ” mean respectively the town clerk the medical officer of health the surveyor and any sanitary inspector of the borough ;

“ the tribunal ” means the tribunal or other authority to whom any question of disputed purchase money or compensation under this Act is referred in pursuance of the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(3) Except where the context otherwise requires any reference in this Act to any enactment shall be construed as a reference to that enactment as applied extended amended or varied by or by virtue of any subsequent enactment including this Act.

PART II

COMMON AND WASTE LANDS

Extinction of
common and
other rights
over commons.

5. From and after the passing of this Act—

(1) the commons shall vest in the Corporation in fee simple freed and discharged from all rights of common of pasturage and all rights in and over the same or any part or parts thereof and all such rights (if any) shall be extinguished and no claim for compensation shall lie or accrue in respect thereof ;

(2) the provisions of the scheme shall cease to apply to the commons.

Use of
commons.

6.—(1) The commons shall be deemed to be public parks or pleasure grounds or lands acquired by the Corporation for the purpose of cricket football tennis bowls and athletic sports or other games and recreations or partly the one or partly the other as the Corporation may from time to time determine and the Corporation may exercise in regard thereto respectively the powers conferred upon them by the Public Health Act 1875 and the Acts amending and extending the same in respect of public walks and pleasure grounds.

(2) (a) The council may at any time by resolution appropriate—

PART II
—cont.

(i) the part of the commons numbered 203 on the deposited plans for the purpose of a parking place ;

(ii) any part or parts of the commons for the purpose of widening existing streets.

(b) Any part of the commons other than parts to which paragraph (a) of this subsection applies may be appropriated by the Corporation subject to and in accordance with the provisions of section 163 of the Act of 1933 as if the said part were not required for the purpose for which it was acquired.

PART III

LANDS

7.—(1) Subject to the provisions of this Act the Corporation may enter upon take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as may be required for the purpose of the works authorised by this Act. Power to acquire lands.

(2) The powers of the Corporation for the compulsory purchase of land under this section shall cease after the expiration of five years from the first day of December nineteen hundred and fifty-two.

(3) The Corporation shall not under the powers of this section acquire the property in any public highway but the Corporation may acquire such easements or rights in or under any such highway as they may deem necessary for the purpose of constructing using maintaining and enlarging the works authorised by this Act and works and conveniences in connection therewith (including means of access thereto from the surface of the land) and for the exercise in reference thereto of the powers of Part IV (Drainage works) of this Act.

8.—(1) If any omission misstatement or wrong description of any land or of the owner lessee or occupier of any land is found to have been made on the deposited plans or in the deposited book of reference the Corporation after giving ten days' notice to the owner lessee and occupier of the land in question may apply to two justices having jurisdiction where the land is situated for the correction thereof. Correction of errors in deposited plans and book of reference.

(2) If on any such application it appears to the justices that the omission misstatement or wrong description arose from mistake the justices shall certify the fact accordingly and shall in their certificate state the particulars of the omission or in what respect any matter is misstated or wrongly described.

PART III
—cont.

(3) Any such certificate shall be deposited with the clerk of the county council and a copy thereof shall be deposited with every clerk of a local authority with whom a copy of the deposited plans (or of so much thereof as includes the land to which the certificate relates) has been deposited in accordance with the standing orders of the Houses of Parliament or who has the custody of any such copy so deposited and thereupon the deposited plans and the deposited book of reference shall be deemed to be corrected according to the certificate and it shall be lawful for the Corporation to take the land and execute the works in accordance with the certificate.

(4) Any certificate or copy deposited under this section with any person shall be kept by him with the other documents to which it relates.

Acquisition of
part only
of certain
properties.

9.—(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act 1845.

(2) No person shall be required to sell a part only of any house building or factory or of a park or garden belonging to a house if he is willing and able to sell the whole of the house building factory park or garden unless the tribunal determines—

(a) in the case of a house building or factory that such part as is proposed to be taken can be taken without material detriment to the house building or factory ; or

(b) in the case of a park or garden that such part as aforesaid can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the tribunal determines as aforesaid compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part and thereupon the person interested shall be required to sell to the Corporation that part of the house building factory park or garden.

Power to
expedite entry.

10. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act or in respect of any easement or right in any such land but not less than one month after giving the owner and occupier of the land notice of their intention to exercise the powers of this section the Corporation may enter on and take possession of the land or such part thereof as is specified in the last-mentioned notice or enter on the land in respect of which the easement or right is to be acquired without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act 1845:

Provided that the Corporation shall pay the like compensation for land of which possession is taken under this section or for the easement or right acquired and the like interest on the compensation awarded as would have been payable if the provisions of those sections had been complied with.

11. Any person acting on behalf of the Corporation and duly authorised by the town clerk may at all reasonable times enter on any land that may be acquired compulsorily under this Act for the purpose of surveying or valuing the land:

Power to enter
for survey or
valuation.

Provided that no land shall be entered under this section unless the Corporation not less than twenty-four hours before the first entry and not less than twelve hours before any subsequent entry have given notice to the owner and occupier of the land.

12. In determining any question of disputed compensation or purchase money in respect of land acquired under this Act the tribunal shall not take into account—

Disregard of
recent
improvements
and interests.

(a) any improvement or alteration made or building erected after the fifth day of December nineteen hundred and fifty-one; or

(b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made erected or created with a view to obtaining or increasing the compensation or purchase money.

13. In determining the amount of compensation or purchase money payable to any person in respect of his interest in land acquired or in land in respect of which an easement is acquired under this Act in a case where—

Set-off of
betterment
against
compensation.

(a) he has an interest in any other land contiguous with or adjacent to the land so acquired or the land in respect of which an easement is so acquired; and

(b) the value of his interest in any such contiguous or adjacent land is enhanced by reason of the execution of the works authorised by this Act or any of them;

the amount of the enhancement in value shall be set off against the compensation or purchase money:

Provided that any such enhancement in value of an interest in land shall be estimated on the assumption that planning permission in respect of that land would be granted under the Town and Country Planning Act 1947 for the operations or uses specified in the Third Schedule to that Act but for no other development.

PART III
—cont.Extinction of
private rights
of way.

14.—(1) Any private right of way over any land that may be acquired compulsorily under this Act shall if the council so resolve and give notice in writing of their resolution to the owner of the right be extinguished as from the acquisition of the land whether compulsorily or by agreement or as from the expiration of one month from the service of the notice whichever is the later.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

Power to
acquire
easements
only.

15.—(1) In lieu of acquiring any land that may be acquired under this Act the Corporation may for the purpose of constructing using maintaining and enlarging so much of the works authorised by this Act as will be laid underground and doing anything necessary in connection therewith acquire such easements and rights in that land as they may require for that purpose including means of access to such works from the surface of the land although such means will not be entirely underground.

(2) Accordingly the Corporation may give notice to treat in respect of any such easement or right describing the nature thereof and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

(3) Where the Corporation have acquired an easement or right only in any land under this section—

(a) they shall not be required or (except by agreement or during the execution of the said works) entitled to fence off or sever that land from the adjoining land ;

(b) the owner or occupier of the land for the time being shall subject to the easement or right have the same right to use and cultivate the land as if this Act had not been passed.

(4) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Corporation to acquire the land the Corporation shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or in the case of a park or garden belonging to a house without seriously affecting the amenity or convenience of the house:

Provided that nothing in this subsection shall apply to land forming part of a street.

PART III
—cont.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section.

16.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may if he thinks fit subject to the provisions of those Acts grant to the Corporation any easement or right required for the purposes of this Act in over or affecting any such lands (not being an easement or right of water in which some person other than the grantor has an interest).

Grant of easements by persons under disability.

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

17. The power of the Corporation of purchasing land by agreement shall include power to purchase land by agreement for the purpose of providing substituted sites or facilities for the owners and occupiers of land that may be acquired under this Act.

Provision of substituted sites.

18.—(1) The Corporation may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired under this Act with respect to his reinstatement elsewhere.

Power to reinstate owners or occupiers of property.

(2) Any such agreement may provide for the exchange of land and for that purpose the Corporation may pay or receive money for equality of exchange.

19.—(1) The Corporation may pay to any person displaced from any building acquired under this Act and carrying on a trade or business therein such reasonable allowance as they think fit towards the loss which in their opinion he will sustain by reason of the disturbance of his trade or business in consequence of his having to quit the building.

Allowances to displaced persons.

(2) In estimating the said loss the Corporation shall have regard to the period for which the premises occupied by that person might reasonably have been expected to be available for the purpose of his trade or business and the availability of other premises suitable for that purpose.

(3) The provisions of this section shall be in addition to and not in derogation of any enactment or any rule of law relating to compensation for disturbance.

PART III
—cont.Agreements
with adjoining
owners.

20.—(1) The Corporation may enter into and carry into effect agreements with any person being the owner of or interested in any land abutting on any portion either of the works authorised by this Act or of land that may be acquired under this Act with respect to the sale by the Corporation to him of any land.

(2) The Corporation may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Corporation for the purposes of this Act or any easement or right therein.

Proceeds of
disposal of
surplus land.

21.—(1) Any capital money received by the Corporation on the resale or exchange of or by leasing any land acquired under this Act may (so far as they consider necessary and subject to the approval of the Minister) be applied by them in the purchase of other land.

(2) Any capital money so received and not so applied shall be applied in or towards the extinguishing of any loan raised by the Corporation under any enactment.

(3) Any application of money under the last foregoing subsection shall unless the Minister on the application of the Corporation otherwise directs and subject in that event to such conditions as he may impose be in addition to and not in substitution for such method of extinguishing the loan as may have been adopted by the Corporation under any enactment.

(4) Any capital money received by the Corporation on the resale or exchange of or by leasing any land acquired under any enactment other than this Act shall be applied in the same manner as capital money received under that enactment is applicable or in such other manner as may be approved by the Minister.

Extension of
power to
acquire land
by agreement.

22.—(1) The Corporation may by agreement acquire (whether by purchase lease or exchange) and hold any land which in their opinion it is desirable that they should acquire for or in connection with the purposes of any of their undertakings powers or duties or for the benefit improvement or development of the borough notwithstanding that the land may not be immediately required.

(2) Any land acquired under this section may be appropriated by the Corporation subject to and in accordance with the provisions of section 163 of the Act of 1933 as if it were not required for the purposes for which it was acquired.

(3) Pending such appropriation as aforesaid all expenses incurred by the Corporation under this section shall be payable out of the general rate fund.

PART IV

DRAINAGE WORKS

23. Subject to the provisions of this Act the Corporation may in the lines and according to the levels shown upon the deposited plans and sections relating thereto execute make maintain renew and enlarge the works hereinafter described (all such works except part of Work No. 1 being situate within the borough) with all necessary or convenient works conveniences inlet and outlet weirs and sluices in connection therewith (that is to say): —

Work No. 1 A surface water culvert partly in the borough and partly in the borough of Hornsey commencing at the last manhole on the existing surface water culvert in Effingham Road about 10 yards west of the boundary between the borough and the borough of Hornsey and terminating by a junction with Work No. 2 in Avenue Road at its junction with Newsam Avenue:

Work No. 2 An improvement of the existing surface water culvert commencing at the termination of Work No. 1 in Avenue Road and terminating by a junction with both Work No. 3 and Work No. 4 in Culvert Road:

Work No. 3 An improvement of the existing surface water culvert commencing at the termination of Work No. 2 in Culvert Road and terminating by a junction with Work No. 5 in Seven Sisters Road:

Work No. 4 A surface water culvert commencing at the termination of Work No. 2 in Culvert Road and terminating by a junction with both Work No. 8 and Work No. 9 in Seven Sisters Road:

Work No. 5 An improvement of the existing surface water culvert commencing at the termination of Work No. 3 in Seven Sisters Road and terminating by a junction with Work No. 6 at a point about 50 yards east of the point of commencement:

Work No. 6 A surface water culvert commencing at the termination of Work No. 5 and terminating by a junction with Work No. 7 at the entrance to the existing surface water culvert under the railway bank on the Seven Sisters and Palace Gates line of the eastern region of the commission at a point about 67 yards east of the point of commencement:

Work No. 7 An improvement of the existing surface water culvert commencing at the termination of Work No. 6 and terminating by a junction with the existing surface water culvert in the railway yard at South Tottenham station at a point about 10 yards east of High Road:

PART IV
—cont.

Work No. 8 A surface water culvert commencing by a junction with the existing surface water culvert in the south side of the railway bank on the Tottenham and Hampstead joint line of the eastern region of the commission at a point about 90 yards west of Seven Sisters Road and terminating by a junction with both Work No. 4 and Work No. 9 in Seven Sisters Road:

Work No. 9 A surface water culvert commencing at the termination of both Work No. 4 and Work No. 8 in Seven Sisters Road and terminating by a junction with the termination of Work No. 7:

Work No. 10 A surface water culvert commencing by a junction with the existing surface water culvert in the said railway yard at South Tottenham station at a point about 333 yards east of the termination of Work No. 7 and terminating at the confluence of the Stonebridge Brook with the river Lee:

Work No. 11 An improvement and culverting of an existing open surface water channel commencing by a junction with Work No. 10 at or near the footbridge over the existing surface water channel in the said railway yard at South Tottenham station and terminating by a junction with the existing surface water culvert under the railway bank on the said Tottenham and Hampstead joint line at a point about 37 yards east from the point of commencement:

Work No. 12 A surface water sewer commencing by a junction with the existing surface water sewer in Harringay Road at a point about 70 yards from St. Ann's Road and terminating by a junction with Work No. 1 in St. Ann's Road:

Work No. 13 A surface water sewer commencing in Glenwood Road at its junction with St. Ann's Road and terminating by a junction with Work No. 14 in Avondale Road:

Work No. 14 A surface water sewer commencing at the termination of Work No. 13 in Avondale Road and terminating by a junction with Work No. 1 in St. Ann's Road:

Work No. 15 A surface water sewer commencing by a junction with the existing surface water sewer in Woodlands Park Road at a point about 37 yards south of the junction of Woodlands Park Road with Brampton Road and terminating by a junction with Work No. 1 in St. Ann's Road:

Work No. 16 A surface water sewer commencing by a junction with the existing surface water sewer in Etherley Road at a point about 60 yards from the junction of that road with Cranleigh Road and terminating by a junction with Work No. 1 in Chestnuts recreation ground:

Work No. 16A A surface water sewer commencing in Conway Road at its junction with Ritches Road and terminating by a junction with Work No. 16 in Etherley Road:

Work No. 17 A surface water sewer commencing in Falmer Road at a point about 17 yards from Clarence Road and terminating by a junction with Work No. 1 in Cornwall Road at its junction with Falmer Road and Gorleston Road:

Work No. 17A A surface water sewer commencing in land at the rear of No. 15 Gorleston Road and terminating by a junction with Work No. 17 in Cornwall Road:

Work No. 18 An improvement and culverting of the existing open watercourse along the eastern boundary of Harringay Stadium:

Work No. 19 An improvement and culverting of the existing open watercourse at the rear of premises Nos. 169 to 175 Hermitage Road:

Work No. 20 An improvement of the existing surface water culvert commencing at the manhole on the east side of Hermitage Road and terminating at the manhole in the south side of the railway bank of the said Tottenham and Hampstead joint line about 60 yards east of Hermitage Road.

24. The Corporation in constructing the works authorised by this Part of this Act may deviate to any extent not exceeding the limits of deviation shown on the deposited plans (and where in any street no such limits are shown the boundaries of such street shall be deemed to be such limits) and may deviate from the levels shown on the deposited sections to any extent not exceeding ten feet upwards and to any extent downwards:

Provided that the Corporation shall not in the construction of Work No. 1 by this Act authorised over the underground railway of the commission deviate downwards from the said levels to a greater extent than twenty feet.

25.—(1) Subject to the provisions of this Act and within the limits of deviation shown on the deposited plans

PART IV
—cont.

Corporation in connection with the works authorised by this Part of this Act and for the purposes thereof may—

- (a) make and maintain all necessary and convenient walls embankments fences culverts drains intakes watercourses weirs sluices wharves railways tramways gantries ropeways roads bridges footpaths and all such machinery works and appliances as may be required ;
- (b) raise widen lengthen alter and reconstruct the bridges over the streams and watercourses affected by the works authorised by this Part of this Act together with the approaches thereto and strengthen underpin and deepen the piers arches and other supports and the foundations thereof without acquiring the said bridges or any interest therein ;
- (c) stop up and discontinue so much of the streams and watercourses affected by the works authorised by this Part of this Act as will be rendered unnecessary by reason of the execution of those works and deposit on the bed thereof spoil or other material excavated in the construction of those works ;
- (d) execute any works for the protection of any adjoining lands or buildings ;
- (e) remove alter divert or stop up any drain sewer channel or watercourse the Corporation providing a proper substitute before interrupting the flow of sewage in any drain or sewer or of water in any channel or watercourse ; and
- (f) alter the mains pipes wires and other works for the purpose of conveying water gas or electricity to any house or other place and any telegraph and telephone posts wires and cables and any rediffusion posts wires and cables.

(2) Within the limits of deviation shown on the deposited plans the Corporation may raise sink or otherwise alter the position of any of the steps areas cellars windows and pipes or spouts belonging to any house or building and may remove all other obstructions.

(3) In the exercise of the powers conferred by this section the Corporation shall cause as little detriment and inconvenience to any person as circumstances admit and shall make reasonable compensation for any damage caused to any person by the exercise of such powers and such compensation shall in case of dispute be determined under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

(4) Any electric light and power or other apparatus constructed and maintained under this section shall be so constructed used and maintained as to prevent any interference with any telegraphic line belonging to or used by the Postmaster-General or with telegraphic communication by means of any such line.

(5) The Corporation shall not under the powers of this section remove alter or otherwise interfere with any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act 1878.

26. Where by reason of the execution of the works authorised by this Part of this Act or the provision of any sewer by the Corporation under the Act of 1936 any public sewer or part of such sewer is rendered unnecessary the Corporation may in addition to their powers under the last foregoing section stop up and seal off any such sewer or part of such sewer and may subject to the provisions of sections 278 and 287 of the Act of 1936 enter upon any lands for the purpose of gaining such access as may be reasonably necessary for enabling any such sewer or part of such sewer to be so stopped up and sealed off. Access to
sewers.

27.—(1) For the purpose of the execution maintenance renewal or enlargement of the works authorised by this Part of this Act the Corporation may break up any street and for any reasonable time stop up divert and interfere with any street in the borough and divert the traffic therefrom and prevent persons using it: Breaking up
and temporary
stoppage
of streets.

Provided that the Corporation shall not exercise the powers of this section—

- (i) as respects any trunk road without the consent of the Minister of Transport ; or
- (ii) so as to deprive foot-passengers bona fide going to or from any building or land in the street of reasonable access to the building or land ; or
- (iii) so as to obstruct or interfere with the access to or exit from any station wharf or depot of the commission without their consent which consent shall not be unreasonably withheld and any question as to whether or not it is unreasonably withheld shall be determined by the Minister of Transport.

(2) Before the Corporation break up or otherwise interfere with any street in connection with the execution maintenance renewal or enlargement of any works under the powers of this

PART IV
—cont.

Part of this Act they shall (except in cases of emergency) give twenty-one days' notice in writing to the Commissioner of Police of the Metropolis and make such arrangements with the said commissioner as may be reasonably necessary so as to cause as little interference as may be reasonably practicable with the traffic in the street or road during the execution of such works.

Underpinning
of houses
near works.

28. Where in order to avoid in the execution and maintenance of the works authorised by this Part of this Act injury to the houses and buildings within one hundred feet of those works it may be necessary to underpin or otherwise strengthen the same the Corporation at their own costs and charges may and if required by the owners or lessees of any such house or building shall subject as hereinafter provided underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

- (1) At least ten days' notice shall except in case of emergency be given to the owners lessees and occupiers or by the owners or lessees of the house or building so intended or so required to be underpinned or otherwise strengthened:
- (2) Each such notice if given by the Corporation shall be served in manner prescribed by section 19 of the Lands Clauses Consolidation Act 1845 and if given by the owners or lessees of the premises to be underpinned or strengthened shall be sent to the town clerk:
- (3) If any owner lessee or occupier of any such house or building or the Corporation as the case may require shall within seven days after the giving of such notice give a counter-notice that he or they as the case may be disputes or dispute the necessity of such underpinning or strengthening the question of its necessity shall be referred to an arbitrator (in this section referred to as "the referee"):
- (4) The referee shall forthwith upon the application of either party proceed to inspect such house or building and determine the matter referred to him and in the event of his deciding that such underpinning or strengthening is necessary he may and if so required by such owner lessee or occupier shall prescribe the mode in which the same shall be executed and the Corporation may and shall proceed forthwith so to underpin or strengthen the said house or building:
- (5) The Corporation shall be liable to compensate the owners lessees and occupiers of every such house or building for any loss or damage which may result to

them by reason of the exercise of the powers granted by this section provided that the claim for compensation in respect of such loss or damage be made within three months from the occurrence thereof:

- (6) (a) In any case in which any house or building shall have been underpinned or strengthened under the powers of this section the Corporation may from time to time after the completion of such underpinning or strengthening and during the execution of the work in connection with which such underpinning or strengthening was done or within twelve months after the completion of that work enter upon and survey such house or building and do such further underpinning or strengthening thereof as they may deem necessary or expedient or as in case of dispute between the Corporation on the one hand and the owner lessee or occupier of the house or building on the other hand shall be settled by arbitration;

(b) If in any case in which any house or building shall have been underpinned or strengthened on the requisition of the Corporation such underpinning or strengthening shall at any time within twelve months from the completion of the work in connection with which such underpinning or strengthening was done prove inadequate for the support or protection of the house or building against further injury arising from the execution or maintenance of such work then and in every such case unless such underpinning or strengthening shall have been done in pursuance of and in the mode prescribed by the referee the Corporation shall make compensation to the owners lessees and occupiers of such house or building for such injury provided that the claim for compensation in respect thereof be made by such owners within twelve months and by such lessees or occupiers within six months from the discovery thereof:

- (7) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Corporation from the liability to compensate under section 68 of the Lands Clauses Consolidation Act 1845 or under any other Act:
- (8) Any compensation payable under this section shall in case of dispute be determined under and in accordance with the Acquisition of Land (Assessment of Compensation) Act 1919 as amended by the Lands Tribunal Act 1949.

PART IV
—cont.For protection
of Lee
Conservancy
Catchment
Board.

29. Notwithstanding anything in this Act and unless otherwise agreed between the Corporation and the board the following provisions for the protection of the board shall apply and have effect:—

(1) In this section—

“ the board ” means the Lee Conservancy Catchment Board ;

“ the main river works ” means Works Nos. 5 6 7 9 10 and 11 authorised by this Part of this Act (being works affecting the main river of the board) and any work in connection therewith executed under the powers of this Act ;

“ alter ” includes reconstruct enlarge renew and remove :

(2) The Corporation shall not execute any of the main river works except in accordance with the provisions of the agreement dated the twenty-second day of November nineteen hundred and fifty-one entered into between the board and the Corporation under the provisions of section 6 of the Land Drainage Act 1930 :

(3) (a) Before altering any of the main river works the Corporation shall (except in cases of emergency) submit to the board plans sections and (when reasonably required by the board) working drawings thereof for their reasonable approval. If the board do not within twenty-eight days after the submission to them of any such plans sections and drawings signify to the Corporation their approval or disapproval thereof they shall be deemed to have approved thereof ;

(b) Except in cases of emergency none of the main river works shall be altered otherwise than in accordance with such plans and sections and drawings (if any) as may be approved by the board or if such approval be withheld as may be settled by arbitration ;

(c) The Corporation shall carry out the alteration of any main river work to the reasonable satisfaction of the engineer to the board and if any dispute shall arise the matter shall be settled by arbitration :

(4) While the alteration of any of the main river works is in progress the Corporation shall at all reasonable times afford to the engineer of the board or his duly authorised representative access to the main river work for the purpose of inspection :

(5) Any alteration of any of the main river works shall be completed with all reasonable dispatch:

(6) The Corporation shall at all times keep the board indemnified against all damages losses costs and expenses which the board may sustain or be liable for or reasonably and properly incur by reason or in consequence of any alteration of any of the main river works:

(7) Nothing in this Act shall prejudice lessen or affect any right power or jurisdiction of the board under the Land Drainage Act 1930:

(8) Any matter or thing by this section required to be settled by arbitration and any dispute or difference which may arise under this section between the board and the Corporation save as to the construction of this section shall be referred to and determined by an engineer or other fit person to be agreed between the board and the Corporation or (failing agreement) to be appointed on the application of either party (after notice in writing to the other) by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to the reference and determination.

30.—(1) Subject to the provisions of this section if the works authorised by this Part of this Act and shown on the deposited plans and sections are not completed by the thirty-first day of October nineteen hundred and sixty-two then the powers conferred on the Corporation by this Act for constructing the same or otherwise in relation thereto shall cease except as to so much thereof as shall then be completed:

Period for
completion
of works.

Provided that the Corporation may alter reconstruct renew or remove any of the works as and when occasion may require.

(2) The Minister may by order extend the period referred to in subsection (1) of this section.

(3) Before deciding whether or not to make an order under the last foregoing subsection the Minister may require the fulfilment by the Corporation in such manner as may be specified in the requirement of such conditions with respect to the publication of notices and the giving of notices to such persons as may be so specified and the Minister shall afford to any person appearing to him to be likely to be affected by the making of the order an opportunity of making representations to him and may if he thinks fit cause a local inquiry to be held:

PART IV
—cont.

Provided that if the order for which application is made is to extend the period for constructing any of the main river works (as defined in the last foregoing section of this Act) notice of the application shall be given by the Corporation to the Lee Conservancy Catchment Board and the said board shall for the purposes of this subsection be deemed to be a person likely to be affected by the making of the order.

(4) As soon as may be after making an order under this section the Minister shall cause to be published in such manner as appears to him to be best adapted for informing persons affected a notice stating that the order has been made and specifying a place where copies thereof may be obtained.

(5) An order under this section shall be subject to special parliamentary procedure.

Modification
of section 26
of Public
Utilities Street
Works Act
1950 in
respect of
trolley vehicle
apparatus.

31.—(1) In any case in which the Corporation are the operating undertakers within the meaning of section 26 of the Act of 1950 in respect of undertakers' works authorised by this Part of this Act and the commission are the owning undertakers within the meaning of that section in respect of the trolley vehicle apparatus of the commission the said section 26 shall be modified as follows:—

- (a) The notice to be given under subsection (2) of the said section by the operating undertakers to the owning undertakers shall be accompanied by plans sections and particulars of the works ;
- (b) The said notice shall be given not less than fourteen days before the works are commenced ;
- (c) Any question which may arise under the said section as modified by this section between the operating undertakers and the owning undertakers shall be determined by arbitration in accordance with section 31 of the Act of 1950 and the proviso to subsection (2) of that section shall not apply.

(2) In this section—

- (a) " trolley vehicle apparatus " means any posts cables wires ducts or other apparatus connected with the trolley vehicle system of the commission ;
- (b) " the Act of 1950 " means the Public Utilities Street Works Act 1950 and any expressions to which meanings are assigned by that Act have the same respective meanings.

32. The local authority of a borough the drainage of whose area or any part thereof is directed to any of the works to which this Part of this Act applies may contribute towards any expenditure incurred by the Corporation in carrying into execution any of the provisions of the said Part such sums as may be agreed.

PART IV
—cont.

Contributions
towards
expenses of
Part IV.

33. Nothing in this Part of this Act shall exempt any person from or shall alter or affect the operation of any of the provisions of the London Traffic Act 1924.

Restriction on
breaking up
of streets.

PART V

SANITATION AND BUILDINGS

34. Section 24 of the Act of 1936 shall have effect in its application to the borough as if the following were substituted for the proviso to subsection (1) of that section:—

Recovery of
cost of
maintaining
public sewers.

“Provided that unless in the opinion of the medical officer of health or the sanitary inspector immediate action is necessary notice of the work proposed to be undertaken shall not less than seven days before the work is commenced be given to the owners of any premises known by the local authority to be served by the length of sewer in question and the local authority shall consider any representations as to the need for and the reasonableness of the proposed work which may be made to them by any of those owners within seven days of the service of the notice.”

35.—(1) In lieu of section 48 of the Act of 1936 the following provisions of this section shall if the council by resolution so determine have effect in the borough for such period as may be specified in the resolution either as respects the whole of the borough or as respects such part or parts thereof as may be so specified.

Delegation
of power to
examine and
test drains etc.

(2) Where it appears to the medical officer or the sanitary inspector that there are reasonable grounds for believing—

(a) that a sanitary convenience drain private sewer or cesspool is in such a condition as to be prejudicial to health or a nuisance; or

(b) that a drain or private sewer communicating directly or indirectly with a public sewer is so defective as to admit subsoil water;

he may examine its condition and for that purpose may apply any test other than a test by water under pressure and if he deems it necessary open the ground.

(3) If on examination the convenience drain sewer or cesspool is found to be in proper condition the Corporation shall as soon

PART V
—cont.

as possible reinstate any ground which has been opened by the medical officer or the sanitary inspector and make good any damage done by him.

Summary
power to
remedy
stopped-up
drains etc.

36.—(1) If it appears to the medical officer or the sanitary inspector that on any premises in the borough a drain private sewer water-closet or soil pipe is stopped up he may by notice require the owner or occupier of the premises to remedy the defect within forty-eight hours from the service of the notice.

(2) If the notice is not complied with the Corporation may themselves carry out the work necessary to remedy the defect and may subject to the next following subsection recover the expenses of so doing from the person on whom the notice was served:

Provided that where the said expenses do not exceed two pounds the Corporation may if they think fit remit the payment thereof.

(3) In any proceedings under this section the court may inquire—

- (a) whether any requirement contained in a notice served under this section or any work done by the Corporation was reasonable ; and
- (b) whether the expenses incurred by the Corporation in doing the work or any part thereof ought to be borne wholly or partly by the person on whom the notice was served ;

and the court may make such order concerning the expenses or their apportionment as appears to the court to be just in the circumstances of the case :

Provided that the court shall not order the expenses or any part thereof to be borne by any person other than the defendant in the proceedings unless the court is satisfied that that other person has had due notice of the proceedings and an opportunity of being heard.

Closet
accommoda-
tion for
separate
dwellings.

37. For the purposes of section 44 of the Act of 1936 any part of a building in the borough being a part occupied as a dwelling shall be treated as a separate building and where two or more parts of such a building are occupied as dwellings by separate families each such part shall be treated as a separate building.

Power to
cleans drains
etc.

38. The Corporation may at the request in writing of the owner or occupier of any premises in the borough undertake the cleansing of any drains water-closets sinks or gullies in or connected with the premises and may make such charge if any for so doing as they think fit.

39.—(1) Where plans for the extension or erection of a building used or to be used for manufacturing or other purposes are in accordance with building byelaws deposited with the Corporation and the plans show that it is proposed to construct a chimney for carrying smoke or steam or noisome or deleterious gases or effluvia from the building the Corporation shall reject the plans unless they are satisfied that the height of the chimney as shown on the plans will be sufficient to prevent it being prejudicial to health or a nuisance having regard to—

Height of
new chimneys.

- (a) the purpose of the chimney ;
- (b) the position and description of buildings near thereto ;
- (c) the levels of the neighbouring ground ; and
- (d) any other matters requiring consideration in the circumstances.

(2) If the Corporation reject the plans under the authority of this section the notice given in pursuance of subsection (2) of section 64 of the Act of 1936 shall specify that the plans have been so rejected.

(3) This section shall not apply to a chimney of a generating station consent to the construction of which has been given in accordance with the provisions of the Electricity (Supply) Acts 1882 to 1936 by the Minister of Fuel and Power.

40.—(1) As from the appointed day no person shall commence to demolish or take down any building or part thereof within the borough without first giving notice to the Corporation of his intention so to do and the Corporation may require such person to comply with such reasonable terms and conditions as they think fit including terms and conditions requiring—

Demolition
of buildings.

- (a) the shoring up of adjacent buildings ; and
- (b) the removal of any material or rubbish resulting from the demolition or taking down and the clearance of the site ;

to the satisfaction of the Corporation within a reasonable time to be prescribed by the Corporation :

Provided that this section shall not apply to the demolition or taking down of an internal part of a building if such demolition or taking down is incidental to an internal alteration of the building the use of which it is intended to continue.

(2) Any person aggrieved by a requirement of the Corporation under the preceding subsection may appeal to a court of summary jurisdiction.

(3) Where notice is given to the Corporation under subsection (1) of this section and such notice is accompanied by particulars of such building or part thereof and of the proposals

PART V
—cont.

in regard thereto the Corporation shall be deemed to have approved the proposals unconditionally unless within six weeks from the receipt thereof or within such longer period as the applicant may agree in writing to allow they give notice to him that they have decided to the contrary.

(4) If any term or condition imposed under this section is not complied with within the time therein prescribed the Corporation may themselves enter upon the building and the site thereof and carry out the work.

(5) Notwithstanding anything in subsection (3) of section 276 of the Act of 1936 as applied by this Act that section shall apply to all rubbish or other material removed by the Corporation under this section.

(6) All expenses incurred by the Corporation under subsection (4) of this section may be recovered by the Corporation from the person who has given notice under subsection (1) of this section.

(7) Any person who contravenes the provisions of this section or of any term or condition imposed under this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding forty shillings.

(8) This section shall not apply to—

- (a) any poultry-house greenhouse coal shed or cycle shed or other similar structure ; or
- (b) any building (not being a house or a showroom) belonging to the Metropolitan Water Board and used by them for the purposes of their undertaking ; or
- (c) any building (not being a house) belonging to the commission and held by them for the purposes of their undertaking :

Provided that the exemption conferred by paragraph (c) of this subsection shall not extend to buildings last used before demolition as offices or showrooms other than buildings so used which form part of a railway station.

Dealing with
drains and
sewers before
demolition
of premises.

41.—(1) Within six weeks from the receipt of a notice under the last preceding section the Corporation may if it is reasonable so to do having regard to all the circumstances of the case by counter-notice require the person giving such notice either—

- (a) to seal any sewer or drain on in or under the site of the building to which the notice relates ; or
- (b) to take up and remove any such sewer or drain and seal any other sewer or drain with which such first-mentioned sewer or drain may be connected ;

and to make good and restore to the satisfaction of the Corporation the surface of the ground disturbed by or interfered with by the execution of any works under paragraph (a) or (b) of this subsection.

PART V
—cont.

(2) The provisions of section 290 of the Act of 1936 shall apply in relation to counter-notices given under this section as they apply in relation to the notices mentioned in subsection (1) of that section.

42.—(1) Where any person shall—

Abandoned
drains to
be cut off.

(a) reconstruct any drain which communicates with any sewer or other drain ;

(b) lay such drain in a new position ; or

(c) on the occasion of the execution of any works to or in connection with such drain permanently discontinue the use of such drain ;

such person shall cause any drain or portion of drain thereby rendered unnecessary to be cut off and sealed at each end.

(2) Any person who knowingly contravenes the provisions of this section shall be liable to a penalty not exceeding five pounds and to a daily penalty not exceeding twenty shillings.

43.—(1) Where the Corporation are satisfied that—

As to defective
premises.

(a) any house in the borough or the roof of any building in the borough is in such a state (in this section referred to as a “defective state”) as to be prejudicial to health or a nuisance ; and

(b) having regard to all the circumstances unreasonable delay in remedying the defective state would be occasioned by following in relation to such house or such building (in this section referred to as “the premises”) the procedure prescribed by sections 93 to 95 of the Act of 1936 ;

the Corporation may (instead of serving an abatement notice as required by section 93 of the Act of 1936) serve upon the person upon whom it would otherwise have been appropriate under the said section 93 to serve such an abatement notice a notice to the effect that the Corporation themselves intend to remedy the defective state of the premises and specifying the defects which they intend to remedy.

(2) Not later than the end of the seventh day after the Corporation have served a notice under subsection (1) of this section the person upon whom such notice was served may serve a counter-notice upon the Corporation stating that he

PART V
—cont.

intends to remedy the defective state of the premises and if such person having duly served such counter-notice commences within such time thereafter as the Corporation consider reasonable to execute such works and take such steps as may be necessary to remedy such defective state and so long as he progresses to the satisfaction of the Corporation with the execution of such works and the taking of such steps the Corporation shall not take action under subsection (3) of this section in respect of such premises.

(3) At any time after the expiration of nine days after the service of a notice under subsection (1) of this section and subject to the provisions of subsection (2) of this section the Corporation may execute such works and take such steps as may be necessary to remedy the defective state of the premises to which such notice relates and subject to the provisions of subsection (4) of this section may recover the expenses reasonably incurred by them in so doing from the person upon whom the notice was served.

(4) (a) In proceedings to recover expenses under subsection (3) of this section it shall be a defence to prove that—

- (i) the alleged defective state did not exist at the time of the service of the notice ; or
- (ii) the need to abate the defective state was not so urgent as to justify the Corporation themselves executing such works and taking such steps without first complying with the provisions of sections 93 and 94 of the Act of 1936 ; or
- (iii) the person upon whom the notice was served having duly served a counter-notice under subsection (2) of this section commenced within a reasonable time and progressed reasonably with the execution of such works and the taking of such steps as were necessary to remedy the defective state of the premises.

(b) A person against whom proceedings are taken under subsection (3) of this section shall upon information duly laid by him and on giving to the Corporation not less than three clear days' notice of his intention be entitled to have any person to whose act default or sufferance he alleges that the defective state of the premises was due brought before the court in the proceedings and if the original defendant proves that the defective state of the premises arose or continued by the act default or sufferance of that other person the court shall have power—

- (i) to order that such expenses as aforesaid may be recovered from that other person ; or
- (ii) to apportion the expenses between persons by whose acts defaults or sufferances the defective state of the premises arose or continued in such manner as the court may deem fair and reasonable.

(5) The Corporation may if they think fit exercise the powers of this section in relation to such defects in the premises as may be specified in the notice notwithstanding the fact that other defects may exist in such premises and in that case nothing contained in this section or done or executed thereunder shall prejudice or affect the powers of the Corporation under sections 93 to 98 and section 100 of the Act of 1936 in relation to any such other defect in such premises.

(6) The powers and functions of the Corporation under this section may be exercised by the medical officer or the sanitary inspector.

44.—(1) Where it is observed by or made known to the surveyor that a structure or any part thereof is in such a state as to require treatment for the removal of any immediate danger the surveyor or any officer authorised by the Council as the case may be may on behalf of the Corporation take such steps as may be necessary to remove the immediate danger and any steps so taken and any expenses thereby incurred shall for the purposes of this section be deemed to have been taken and incurred by the Corporation. Dangerous structures.

(2) The Corporation may recover from the owner of the structure any expenses incurred under this section but without prejudice to the right of the owner to recover the amount of the said expenses from any person liable to pay the expenses of the repair of the structure.

(3) In proceedings to recover expenses under subsection (2) of this section it shall be a defence to prove that—

(a) the alleged immediate danger did not exist ; or

(b) the need to remove the danger was not so urgent as to justify the Corporation themselves taking such steps instead of complying with the provisions of section 75 of the Towns Improvement Clauses Act 1847 or section 58 of the Act of 1936.

(4) (a) Where for the purpose of removing any danger the Corporation have in the exercise of their powers under this section demolished any building the owner thereof may apply to a court of summary jurisdiction to determine whether the Corporation were justified in so doing.

(b) In any case in which the court determines that the Corporation were not so justified the owner of such building shall be entitled to be paid by the Corporation compensation to be determined in case of dispute by arbitration.

(5) Nothing in this section shall authorise the Corporation to interfere with any structure (not being a house or a building used as offices or showrooms) belonging to the commission and

PART V
—cont.

held by them for the purposes of their undertaking without first giving to the commission reasonable notice of their intention to do so.

(6) In this section the expression “structure” includes any building or wall or other structure and anything affixed to or projecting from any building or wall or other structure.

Amendment of
provisions of
Act of 1890
relating to
building
inspectors.

45.—(1) Sections 97 to 102 of the Act of 1890 shall have effect as if for the words “building inspector” or “building inspectors” there were substituted the words “building surveyor” or “building surveyors” respectively.

(2) Section 97 (Power to local board to appoint building inspectors) of the Act of 1890 shall have effect as if for the words “of this Act” there were substituted the words “of any local enactment for the time being in force in the district” and as if the words “not exceeding in each case two hundred pounds per annum” were omitted therefrom.

(3) Section 98 (Surveyor and building inspector to cause rules of this Act to be observed) of the Act of 1890 shall have effect as if for the words “such surveyor or inspector” there were substituted the words “the surveyor or the building surveyor”.

(4) For the Third Schedule to the Act of 1890 there shall be substituted the Second Schedule to this Act and section 99 (Power of local board to require payment of fees in respect of buildings) of the Act of 1890 shall have effect as if the Second Schedule to this Act were referred to therein instead of the Third Schedule to the Act of 1890.

PART VI

SMOKE, NUISANCE

Smoke from
industrial
furnaces.

46.—(1) As from the appointed day no person shall instal in any premises in the borough any furnace for steam raising or for any manufacturing or trade purpose unless the furnace is so far as practicable capable of being operated continuously without emitting smoke.

(2) Any person who contravenes the provisions of this section shall be liable to a penalty not exceeding ten pounds and any person who after there has been a conviction of an offence of installing a furnace in contravention of those provisions uses that furnace shall unless it has been altered so as to comply with those provisions be liable to a penalty not exceeding forty shillings for each day on which he so uses the furnace:

Provided that a person so using such furnace shall not be liable to the last-mentioned penalty unless he himself was convicted of the said offence or if he was not so convicted unless prior to

such use or the continuance of the use he had received notice from the Corporation that there had been a conviction in respect of the installation of such furnace.

(3) Nothing in this section shall apply to the installation of a furnace in—

- (a) a house or flat unless the furnace is intended to be used for the heating of more than one house or flat ; or
- (b) a building previously used as a single house which has been converted into two or more separate houses or flats.

(4) For the purposes of this section the expression “ house ” shall include a house of which part is licensed by the justices for the sale of intoxicating liquor pursuant to the Licensing Acts 1910 to 1949 notwithstanding that the premises are so licensed provided that the house is not designed and is not being adapted to provide more than three bedrooms for visitors or guests.

(5) If a person before installing a furnace to which this section applies submits to the Corporation a plan and specification of the proposed furnace and furnishes them with such other information in regard thereto as they may reasonably require the Corporation may within six weeks from the receipt of the plan specification and information serve notice upon him stating whether or not they are satisfied that the furnace is so far as practicable capable of being operated as aforesaid and—

- (a) if the notice states that they are so satisfied ; or
- (b) if they do not serve any notice under this subsection before the expiration of the said six weeks ;

no proceedings shall be taken against that person under this section in respect of the installation of the furnace in accordance with the plan specification and information so submitted and furnished.

(6) Before serving a notice under this section stating that they are not satisfied that a furnace is so far as practicable capable of being operated as aforesaid the Corporation shall consult the Minister of Fuel and Power.

(7) In determining for the purposes of this section whether a furnace is so far as practicable capable of being operated as aforesaid—

- (a) a court in any proceedings under this section ; and
- (b) the Corporation on considering a plan specification and other information received under subsection (5) of this section ;

shall have regard to cost and to local conditions and circumstances.

PART VI
—cont.
Smokeless
areas.

47.—(1) The Corporation may by order confirmed by the Minister prohibit the emission of smoke from premises to which the order applies.

(2) The occupier of any premises from which smoke is emitted in contravention of the provisions of an order under this section shall be liable to a penalty not exceeding ten pounds and to a daily penalty not exceeding five pounds:

Provided that it shall be a defence in any proceedings under this subsection to prove that the smoke emitted—

(a) arose solely from a furnace stove or other appliance suitable for burning an authorised fuel and properly maintained and used; and

(b) so arose either—

(i) by burning that authorised fuel therein; or

(ii) by burning any other type of fuel therein unless it is proved by the prosecutor that the authorised fuel was available to the defendant at the time the smoke was emitted.

In this subsection the expression “authorised fuel” means coke anthracite or any other fuel specified in the order as being an authorised fuel for the time being approved by the Corporation.

(3) The Corporation may if they think fit contribute the whole or part of the expense necessarily incurred by any person in executing works or in providing altering or adapting any fixtures fittings or appliances for the purpose of complying with the provisions of an order under this section.

(4) An order under this section may contain provisions—

(a) for enabling the tenant of any premises incurring such expense as aforesaid and the owner of those premises to enter into and carry out an agreement making such variations in the terms of the tenancy of the premises as may be reasonable having regard to the expense incurred and to other relevant circumstances;

(b) for enabling any such tenant who has been unable to make such an agreement to apply to the county court for an order making such variations of the terms of the tenancy as aforesaid and for enabling the court to make such an order.

(5) An order under this section shall subject to the provisions of this section apply to all premises situated in such area or areas as may be specified in the order being either the whole of the borough or any part or parts thereof:

Provided that as respects any particular premises or premises of any class so situated any such order may provide—

- (a) that they shall be excluded from the application of the order ; or
- (b) that the application of the order to them shall be deferred until such date as may be so specified.

(6) Before submitting an order to the Minister for confirmation under this section the Corporation shall publish in the London Gazette and in a local newspaper circulating in the borough a notice stating—

- (a) that the order has been made and is about to be submitted to the Minister for confirmation ;
- (b) the area or areas within which the order applies and the general effect of the order ; and
- (c) that within twenty-eight days beginning with a date specified in the notice (not being earlier than the publication of the notice in the local newspaper) any person may object to the confirmation of the order by giving notice in writing to the Minister and sending a copy of the notice of his objection to the town clerk.

The Corporation shall also send a copy of the said notice to the gas board.

(7) If no objection is duly made or if every objection so made is withdrawn the Minister may if he thinks fit confirm the order either with or without modification but in any other case he shall before confirming the order cause a local inquiry to be held and consider any objection not withdrawn and the report of the person holding the inquiry and may then confirm the order either with or without modification.

(8) If at any time after the passing of this Act any person owning or occupying premises in the borough by application to the town clerk specifying his name and address and the premises to which the application relates requests the Corporation to serve upon him a copy of any notice published in pursuance of subsection (6) of this section relating to an order affecting any premises so specified the Corporation shall—

- (a) register the name address and premises so specified in a register kept for the purpose ; and
- (b) serve upon him at the address entered in the register a copy of any such notice :

Provided that the accidental omission to serve a copy of a notice relating to any particular order on any person on whom it should have been served under paragraph (b) of this subsection

PART VI
—cont.

shall not invalidate or prejudice the making or confirmation of the order.

(9) An order under this section may be varied or revoked by another order made by the Corporation and confirmed by the Minister in like manner and subject to the like provisions.

(10) An order under this section may also be varied by another order made by the Minister on the application of the electricity authority or the gas board in relation to any premises intended to be used by the electricity authority as an electricity generating station or by the gas board as a gas works (as the case may be) for the purposes of their respective undertakings:

Provided that—

- (a) before making application to the Minister for an order under this subsection the electricity authority or the gas board (as the case may be) shall give notice to the Corporation of their intention to make the application stating the general effect of the order proposed; and
- (b) before making the order the Minister shall consider any representations which may be made by the Corporation and shall give the Corporation an opportunity of being heard thereon.

(11) As soon as may be after an order under this section has been confirmed by the Minister the Corporation shall—

- (a) publish in a local newspaper circulating in the borough a notice stating that the order has been confirmed and that a copy of the order may be inspected at all reasonable hours at a place in the borough specified in the notice; and
- (b) serve a like notice on every person who having given notice to the Minister of his objection to the order appeared at the local inquiry in support of his objection.

(12) An order under this section shall not come into operation before the expiration of six months from the date of the publication of notice of its confirmation under the last preceding subsection but shall come into operation on such date thereafter as may be specified in the order.

(13) Either—

- (a) a copy of a newspaper containing a notice published in pursuance of this section; or
- (b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page of any such newspaper bearing the date of its publication and containing any such notice;

shall be evidence of the publication of the notice and of the date of the publication.

(14) Nothing in any order under this section shall apply to smoke emitted from a railway locomotive.

PART VI
—cont.

(15) The Minister shall not confirm an order under this section applying as from any date to premises used for any of the following processes that is to say:—

- (a) the working of a mine ;
- (b) the smelting of ores and minerals ;
- (c) the calcining puddling and rolling of iron and other metals ; or
- (d) the conversion of pig iron into wrought iron or the reheating annealing hardening forging converting and carburising of iron and other metals ;

if he is satisfied on an objection duly made under subsection (6) of this section that the application of the order to those premises as from that date would obstruct or interfere with that process.

PART VII

FINANCE

48.—(1) Subject to the provisions of this Act the Corporation shall have power in addition and without prejudice to their powers of borrowing under the Act of 1933 from time to time to borrow without the consent of any sanctioning authority for and in connection with the purposes mentioned in the first column of the following table the respective sums mentioned in the second column thereof and they shall repay any sum so borrowed within such periods as the Corporation may determine not exceeding those respectively mentioned in the third column of the said table:—

1	2	3
Purpose	Amount	Period for repayment
(a) The purchase of lands and easements under the powers of this Act.	£1,000	Sixty years from the date or dates of borrowing.
(b) The execution of the works authorised by this Act.	£660,000	Forty-two years from the date or dates of borrowing.
(c) The payment of the costs charges and expenses of this Act.	The sum requisite.	Five years from the passing of this Act.

(2) The provisions of Part IX of the Act of 1933 so far as they are not inconsistent with this Act shall extend and apply to money borrowed under this section as if it were borrowed under the said Part IX and the period fixed under this section

PART VII
—cont.

for the repayment of any money borrowed under this section shall as respects that money be the fixed period for the purpose of the said Part IX.

Saving for
powers of
Treasury.

49. It shall not be lawful to exercise the powers of borrowing conferred by this Act (except the power of borrowing to pay the costs charges and expenses of this Act) otherwise than in compliance with the provisions of the Local Authorities Loans Act 1945 or of any order for the time being in force made under section 1 of the Borrowing (Control and Guarantees) Act 1946.

PART VIII

MISCELLANEOUS

Stopping up
and diversion
of highways.

50.—(1) Subject to the provisions of this section a court of summary jurisdiction—

(a) if satisfied on the application of the Corporation that a highway within the borough is unnecessary may by order authorise the stopping up thereof; and

(b) if so satisfied that such a highway can be diverted so as to make it nearer or more commodious to the public may by order authorise it to be so diverted.

(2) An application or order under this section—

(a) may provide for the stopping up or diversion of a highway for the purposes of all traffic or subject to the reservation of a bridle-way or footway;

(b) may be made with respect to any part of a highway;

(c) may be made with respect to two or more highways or parts of highways which are connected with each other;

and in relation to any application or order in respect of a part of a highway or two or more highways or parts of highways any reference in the subsequent provisions of this section to a highway shall be construed as a reference to that part or those highways or parts of highways as the case may be.

(3) No application or order shall be made under this section with respect to a trunk road or a public path within the meaning of Part IV of the National Parks and Access to the Countryside Act 1949.

(4) No order shall be made under this section unless the court is satisfied that notice of the intention to apply for the order specifying the time and place at which the application is to be made and the terms of the order applied for (embodying a plan showing the effect of the order)—

(a) has at least twenty-eight days before the date on which the application is made been served on the local planning authority and on the owners or reputed owners

and the occupiers of all land abutting on the highway and also when the application relates to a classified road on the Minister of Transport ; and

- (b) has during at least twenty-eight days been exhibited in such manner and in such positions on or near the highway as may be reasonably sufficient for notifying persons using the highway of the application ;

and that a similar notice (except that there may be substituted for the plan a statement of the place where the plan can be inspected at all reasonable hours without payment) has been inserted once at least in each of four successive weeks in a local newspaper circulating in the borough.

(5) No order under this section authorising the diversion of a highway—

- (a) shall be made unless the written consent of the local planning authority and of every person having a legal interest in the land over which the highway is to be diverted is produced to and deposited with the court ;
- (b) shall authorise the stopping up of any part of the highway until the new part to be substituted for the part stopped up has been completed to the satisfaction of two justices of the peace and a certificate to that effect signed by them has been transmitted by their clerk to the clerk of the peace.

(6) On the hearing of the application the Corporation the local planning authority and any person who is interested in land abutting on or served by the highway or uses the highway or is otherwise aggrieved shall have a right to be heard.

(7) An appeal against a decision of a court of summary jurisdiction under this section may be brought to quarter sessions by any person (including the Corporation and the local planning authority) who was entitled under the last foregoing subsection to be and was or claimed to be heard on the application and for the purposes of the provisions of the Summary Jurisdiction Act 1879 as amended by the Summary Jurisdiction (Appeals) Act 1933 with respect to appeals to quarter sessions—

- (a) a refusal by a court of summary jurisdiction to make an order under this section shall be deemed to be an order ;
- (b) where more than two persons were heard or claimed to be heard in opposition to the application it shall be sufficient if a notice of appeal against a refusal to make an order upon that application is served upon any two of those persons in addition to the clerk of the court

PART VIII
—cont.

but without prejudice to the right of any of those persons to appear as respondents to the appeal ;

- (c) any appeal under this section whether against an order or against a refusal to make an order shall be in the nature of a rehearing.

(8) Where by reason of the diversion of a highway under this section any person is relieved from liability to repair the highway he shall be liable to pay to the Corporation such sum as may be agreed between him and the Corporation or in default of agreement as may be determined by arbitration to represent the value to him of the relief and any such sum shall be payable either—

(a) as a lump sum ; or

(b) by annual payments of such amount and continuing for such number of years as may be agreed or determined as aforesaid.

(9) Every order made under this section—

(a) shall have annexed thereto a plan signed by the chairman of the court ; and

(b) shall be transmitted by the clerk of the court to the clerk of the peace together with any written consents produced to the court under subsection (5) of this section ;

and the clerk of the peace shall enrol any documents so transmitted to him and any certificates transmitted to him under subsection (5) of this section among the records of quarter sessions.

(10) Every order made under this section shall be binding on all persons whatsoever.

(11) The provisions of this section shall be in addition to and not in derogation of any other provisions relating to the stopping up and diversion of highways.

(12) In this section the expression “classified road” has the same meaning as in the Local Government Act 1929.

Compensation
for stopping
employment
to prevent
spread of
disease.

51. If with a view to preventing the spread of—

(a) a notifiable disease ; or

(b) a milk-borne disease as defined in section 37 of the Food and Drugs Act 1938 ; or

(c) food poisoning ;

the medical officer requests in writing any person to discontinue his employment the Corporation may if they think fit compensate him for any loss occasioned by his compliance with the request.

52.—(1) The Tottenham and Wood Green Joint Drainage Committee shall be deemed to be a local authority for the purposes of section 16 of the Middlesex County Council Act 1950.

PART VIII
—cont.
Application of
section 16 of
Middlesex
County
Council Act
1950 to
Tottenham and
Wood Green
Joint Drainage
Committee.

(2) Any resolution to make a grant under subsection (3) of section 23 of the said Act of 1950 passed by the Tottenham and Wood Green Joint Drainage Committee before the passing of this Act shall be deemed to have been duly passed and shall have effect as if this section had come into operation before the passing of such resolution.

53.—(1) The functions of the Corporation under the provisions of Part II of the Act of 1936 relating to the removal and disposal of refuse shall include the power to provide and maintain plant or apparatus for the purpose of treating kitchen waste and to acquire and convert utilise treat and otherwise make merchantable kitchen waste and any product or material necessary to improve the feeding value of animal feed produced from kitchen waste or to maintain the production by the Corporation of such animal feed.

Acquisition
and disposal
of kitchen
waste.

(2) Any kitchen waste product or material acquired or made merchantable as aforesaid may be sold or otherwise disposed of by the Corporation.

(3) In this section “kitchen waste” means broken or waste foodstuffs including table kitchen or vegetable refuse scraps or waste.

54. Where the Metropolitan Water Board in the exercise of their right to cut off the water supply to any inhabited house cease to supply any such house in the borough by reason of the defective state of a supply pipe or fittings the Corporation may execute such works as they think expedient in the circumstances of the case to remedy the defect and the expenses reasonably incurred by the Corporation in executing repairs shall be recoverable by them summarily as a civil debt from the owner of the premises supplied but without prejudice to the rights and obligations as between themselves of the owner and the occupier of the premises.

Supply of
water to
domestic
premises where
supply cut off.

55. The following provisions shall unless otherwise agreed in writing between the Corporation and the commission apply and have effect:—

For protection
of British
Transport
Commission.

(1) In this section—

“railway property” means the lands belonging to or occupied by the commission numbered 148 154 157 158 161 162 163 165A 186 and 187 in the borough on the deposited plans and the railways and railway works of the commission;

PART VIII
—cont.

“the works” means so much of the works authorised by Part IV (Drainage works) of this Act as may be situated upon across under or over any railway property or may in any way affect the same and includes the construction maintenance and renewal of such works but does not include any works which are code-regulated works as defined by the Public Utilities Street Works Act 1950;

“the engineer” means an engineer to be appointed by the commission:

- (2) The Corporation shall not under the powers of this Act acquire compulsorily any lands of the commission but the Corporation may in accordance with section 15 (Power to acquire easements only) of this Act acquire such easements and rights in the lands of the commission shown within the limits of deviation on the deposited plans as the Corporation may require for the purposes of the works:
- (3) The works shall be designed and executed so that the top of any culvert or sewer forming part of the works will be at a depth below the rail level of the railway of not less than three feet:
- (4) The Corporation shall before commencing the works (other than works of maintenance and repair) furnish to the commission proper and sufficient plans sections drawings and particulars thereof for the approval of the engineer which approval shall not be unreasonably withheld and shall not commence the works until such plans sections drawings and particulars shall have been approved by the engineer or in case of difference between the engineer and the Corporation until they shall have been settled by arbitration:

Provided that if within twenty-eight days after such plans sections drawings and particulars have been furnished to the commission the engineer shall not have intimated his approval or disapproval thereof he shall be deemed to have approved them:

- (5) If within twenty-eight days after such plans sections drawings and particulars have been furnished to the commission the commission shall give notice to the Corporation that in consequence of the nature of the works it is reasonably necessary that the commission should construct any part of the works themselves then if the Corporation desire that part of the works to be constructed the commission shall construct it with all reasonable dispatch on behalf of and to the reasonable

satisfaction of the Corporation in accordance with the plans sections drawings and particulars approved or deemed to be approved or settled as aforesaid (hereafter in this section called "the approved plans") and may recover the reasonable cost of so doing from the Corporation:

Provided that in the event of the commission not constructing or completing such part of the works with reasonable dispatch and to the reasonable satisfaction of the Corporation the Corporation may after giving twenty-eight days' notice to the engineer themselves construct such part of the works:

- (6) Upon signifying his approval or disapproval of the plans sections drawings and particulars the engineer may specify any temporary or permanent works which should be carried out before the commencement of the works in order reasonably to ensure the stability of railway property or to protect it from injury and such temporary or permanent works as may be reasonably necessary for those purposes shall be constructed by the commission with all reasonable dispatch and the reasonable cost of constructing such protective works shall be paid by the Corporation and the Corporation shall not commence the construction of the works until the engineer shall have notified the Corporation that such temporary or permanent works have been completed:
- (7) The Corporation shall except in cases of emergency give to the engineer twenty-eight days' notice of their intention to commence any of the works:
- (8) The works (or so much thereof as shall be carried out by the Corporation) shall when commenced be carried out with all reasonable dispatch in accordance with the approved plans and under the supervision (if given) and to the reasonable satisfaction of the engineer and in such manner as to cause as little damage to railway property and as little interference with or delay or interruption to the conduct of traffic on the railways of the commission as may be and if any damage to any railway property or any such interference delay or interruption shall be caused or take place the Corporation shall notwithstanding any such approval as aforesaid forthwith make good such damage and pay to the commission the reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of any such damage interference delay or interruption:

PART VIII
—cont.

- (9) The Corporation shall at all times afford reasonable facilities to the engineer for access to the works during their construction and shall supply him with all such information as he may reasonably require with regard to the works or the method of construction thereof:
- (10) The commission shall at all times afford reasonable facilities to the Corporation for access to any works carried out by the commission under this section during their construction and shall supply the Corporation with all such information as they may reasonably require with regard to such works or the method of construction thereof:
- (11) If any alterations or additions either permanent or temporary to railway property are reasonably necessary in consequence of the works such alterations and additions may be effected by the commission after notice has been given to the Corporation and the Corporation shall repay to the commission the reasonable cost thereof including a capitalised sum representing the increased or additional cost of maintaining working and when necessary renewing any such alterations or additions:
- (12) The Corporation shall repay to the commission all additional costs charges and expenses reasonably incurred by the commission in connection with the works—
- (a) in respect of the employment of any inspectors signalmen watchmen and other persons whom it may be reasonably necessary to appoint for inspecting signalling watching and lighting any railway property affected by the works and for preventing as far as may be reasonably practicable any interference obstruction danger or accident arising from the works;
 - (b) in respect of any special traffic working resulting from any speed restrictions which may in the opinion of the engineer require to be imposed or from the substitution or diversion of services; and
 - (c) in lighting railway property in the vicinity of the works:
- (13) The Corporation shall at all times after the construction of the works maintain them in substantial repair and good order and condition and when necessary renew them to the reasonable satisfaction and under the

supervision (if given) of the engineer and if and whenever the Corporation fail so to do after reasonable notice in that behalf the commission may make and do in and upon the lands of the commission or of the Corporation all such works and things as shall be requisite in that behalf and the reasonable costs and expenses reasonably incurred by the commission in so doing shall be repaid to them by the Corporation:

- (14) The Corporation shall be responsible for and make good to the commission all costs charges damages and expenses not otherwise provided for in this section which may be occasioned to the commission—

(a) by reason of the works or the leakage bursting or failure thereof ; or

(b) by reason of any act or omission of the Corporation or of any persons in their employ or of their contractors or others whilst engaged upon the works ;

and the Corporation shall effectively indemnify and hold harmless the commission from and against all claims or demands arising out of or in connection with the works or any such leakage bursting or failure or act or omission as aforesaid and the fact that any work or thing may have been done by the commission on behalf of the Corporation or in accordance with any plan section drawings or particulars approved by the engineer or in accordance with any requirement of the engineer or under his supervision shall not (if it was done without negligence on the part of the commission or of any person in their employ or of their contractors or others whilst engaged upon the works) excuse the Corporation from any liability under the provisions of this section :

Provided that the commission shall give to the Corporation reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without prior consultation with the Corporation :

- (15) Any additional expense which the commission may reasonably incur after giving one month's notice thereof to the Corporation in widening altering reconstructing or maintaining the railway and railway works of the commission in pursuance of any powers existing at the passing of this Act by reason of the existence of the works shall be repaid by the Corporation to the commission :

PART VIII
—cont.

- (16) Any difference arising between the Corporation and the commission under this section shall be referred to an arbitrator.

For protection
of Postmaster-
General.

56.—(1) Where any highway or part of a highway is stopped up in pursuance of an order made under section 50 (Stopping up and diversion of highways) of this Act the following provisions shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to any telegraphic line belonging to or used by the Postmaster-General which is under in upon over along or across such highway or part of a highway at the time of such stopping up:—

- (a) The power of the Postmaster-General to remove the line shall be exercisable notwithstanding the stopping up of the highway or part of the highway so however that the said power shall not be exercisable as respects the whole or any part of the line after the expiration of a period of three months from the date mentioned in subsection (2) of this section unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the line or that part thereof as the case may be;
- (b) The Postmaster-General may by notice to the Corporation in that behalf abandon the said line or any part thereof and shall be deemed as respects the line or any part thereof to have abandoned it at the expiration of the said period of three months unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) The Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the line a telegraphic line in such other place as the Postmaster-General may require;
- (d) Where under paragraph (b) of this subsection the Postmaster-General abandons the whole or any part of a telegraphic line it shall vest in the Corporation and the provisions of the Telegraph Acts 1863 to 1951 shall not apply in relation to the line or part in question as respects anything done or omitted after the abandonment thereof.

(2) As soon as the whole or any part of any highway has been stopped up the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up

and the period of three months mentioned in subsection (1) of this section shall commence to run from the date on which such notice is sent.

PART VIII
—cont.

57. For protection of the Eastern Electricity Board (in this section referred to as "the board") the following provisions shall unless otherwise agreed in writing between the Corporation and the board apply and have effect:—

For protection
of Eastern
Electricity
Board.

- (1) Notwithstanding anything in this Act or shown on the deposited plans the Corporation shall not acquire otherwise than by agreement any apparatus:
- (2) If the Corporation in the exercise of the powers of this Act acquire any interest in any lands in under over or across which any apparatus is placed they shall not seek to remove that apparatus or to extinguish any right of the board to maintain that apparatus in under over or across those lands until adequate alternative apparatus shall have been constructed and be in operation to the reasonable satisfaction of the board:
- (3) If the Corporation for the purpose of exercising the powers of this Act require the removal of any apparatus and give to the board written notice of such requirement or if in consequence of the exercise of the powers of this Act the Board shall require to remove any apparatus the Corporation shall afford to the board the necessary facilities and rights for the construction of adequate alternative apparatus in on or over other land of the Corporation and thereafter for the maintenance repair renewal and inspection of such apparatus:

Provided that if the Corporation are unable to afford facilities and rights as aforesaid the board shall on receipt of a written notice to that effect from the Corporation forthwith use their best endeavours to obtain the necessary facilities and rights over other land:

- (4) The Corporation shall pay to the board the amount by which the costs charges and expenses reasonably incurred by the board in connection with any removal or alteration of any apparatus or the construction of any new apparatus that may be required in consequence of the exercise of the powers of this Act shall exceed the value of any apparatus removed in consequence of alternative apparatus being provided and shall also make compensation to the board for any damage caused to any apparatus in consequence of the exercise of the said powers:

PART VIII
—cont.

- (5) The Corporation shall not carry out any work authorised by this Act near to which any apparatus has been lawfully placed except in accordance with and subject to the provisions of section 18 of the schedule to the Electric Lighting (Clauses) Act 1899 :

Provided that for the purposes of this subsection the said section 18 shall have effect as if the Corporation were a gas or water company and as if the words “fourteen days” were substituted for the words “three days” in subsection (1) thereof :

- (6) Any difference which may arise between the Corporation and the board under this section or under section 18 of the said schedule shall be referred to and determined by arbitration :
- (7) In this section “apparatus” means any electric lines or works (as respectively defined in the Electric Lighting Act 1882) belonging to the board (not being apparatus in respect of which the relations between the Corporation and the board are regulated by the provisions of section 26 of the Public Utilities Street Works Act 1950) and the expression “adequate alternative apparatus” means alternative apparatus adequate to enable the board to fulfil their statutory functions in a manner not less efficient than previously.

For further
protection
of Eastern
Electricity
Board.

58. For the protection of the Eastern Electricity Board (in this section referred to as “the board”) the following provisions shall unless otherwise agreed in writing between the Corporation and the board apply and have effect :—

- (1) In this section—

“apparatus” means electric lines and works (as respectively defined in the Electric Lighting Act 1882) belonging to the board ;

“in” in a context referring to apparatus includes under over across along or upon ; and

“position” includes depth :

- (2) Whenever by virtue of the provisions of section 50 (Stopping up and diversion of highways) of this Act any highway or any part of highway in which any apparatus is situated is stopped up or diverted and it is reasonably necessary to remove such apparatus the board may—

(i) remove the apparatus to and relay or replace the same in the highway (if any) substituted for the highway or part of highway so stopped up or

diverted or in such other position as may be agreed or determined by arbitration ; or

(ii) provide and lay or place other apparatus in such substituted highway or in such other position as aforesaid in lieu of such existing apparatus :

- (3) The Corporation shall repay to the board the reasonable expenses incurred by the board in or in connection with the removal and relaying or replacing of any apparatus and the provision and laying or placing of any new apparatus under the provisions of subsection (2) of this section and the reasonable costs of and incidental to (i) the cutting off of any apparatus from any other apparatus and (ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection :

Provided that subsections (3) (4) and (5) of section 23 of the Public Utilities Street Works Act 1950 which imposes limitations on undertakers' rights to payments shall so far as applicable extend and apply to any payment to be made by the Corporation under this subsection as if the works hereinbefore mentioned were undertakers' works within the meaning of subsection (2) of the said section 23 and as if in the said subsection (3) the words from "existing apparatus was" to "then" were omitted :

- (4) (a) The board shall not be entitled to any payment in connection with the exercise of the powers of the said section 50 of this Act if the existing apparatus of the board was laid or placed within two years immediately preceding the making of an application under the said section 50 and if notice in writing of their intention to exercise the powers of the said section 50 was given by the Corporation to the board within eight days from the relevant date and within twenty-nine days from the relevant date a plan and section of the proposals of the Corporation were furnished by them to the board and the proposals of the Corporation were carried out in accordance with the said plan and section or without any departure therefrom materially affecting the board ;

(b) For the purposes of this subsection "the relevant date" means the date on which the intention to lay or place the apparatus was signified to the Corporation by the submission of a plan and section if the laying or placing of the apparatus was a work to which section 3 of the Public Utilities Street Works Act 1950 applied or by notice under section 6 of that Act if such laying or placing was not such a work :

PART VIII
—cont.

- (5) Any difference which may arise between the Corporation and the board under this section shall be referred to arbitration.

For protection
of Middlesex
County
Council.

59. Notwithstanding anything in this Act and unless otherwise agreed between the Corporation and the county council the following provisions for the protection of the county council shall apply and have effect:—

- (1) In the exercise of the powers of this Act the Corporation shall not acquire any part of the land numbered 133 on the deposited plans but they may acquire such easements or rights in that land as they may deem necessary for the purpose of constructing using maintaining and enlarging Work No. 2 authorised by this Act and works and conveniences in connection therewith (including means of access thereto from the surface of the land) and for the exercise in reference thereto of the powers of Part IV (Drainage works) of this Act:
- (2) The provisions of subsections (1) (2) and (3) of section 15 (Power to acquire easements only) of this Act shall apply to and in respect of the easements and rights to be acquired under this section:
- (3) If in the exercise of the powers of this Act the Corporation find it necessary to remove or interfere with the lavatories situated upon the said land they may remove them or interfere therewith but the Corporation shall reinstate such lavatories or provide others in lieu thereof and shall provide temporary lavatories during the construction of the works to the reasonable satisfaction of the county council:
- (4) Any question which may arise under this section between the county council and the Corporation (save as to the construction of this section and except any question to which the provisions of the Lands Clauses Acts apply) shall be referred to and determined by an arbitrator.

For protection
of gas board.

60. For the protection of the gas board the following provisions shall unless otherwise agreed in writing between the Corporation and the gas board apply and have effect:—

- (1) In this section unless the context or subject otherwise requires—

“the Act of 1950” means the Public Utilities Street Works Act 1950;

“apparatus” means the mains pipes or other apparatus belonging to the gas board and includes any structure constructed for the lodging therein of apparatus;

“ in ” in a context referring to apparatus includes under over across along or upon ;

“ position ” includes depth :

- (2) Nothing in section 5 (Extinction of common and other rights over commons) of this Act shall extinguish or otherwise affect the rights of the gas board with respect to the laying maintaining renewing extending or removing of any apparatus in Ducketts Common :
- (3) The Corporation shall not exercise the powers of section 6 (Use of commons) of this Act in derogation of the rights of the gas board to lay maintain renew extend or remove apparatus in Ducketts Common nor in such manner as to increase the cost of obtaining access to any apparatus therein :
- (4) In any case in which the Corporation are the operating undertakers within the meaning of section 26 of the Act of 1950 in respect of the construction of undertakers' works authorised by Part IV (Drainage works) of this Act and the gas board are the owning undertakers within the meaning of that section in respect of apparatus the said section 26 shall be modified as follows :—
 - (a) The notice to be given under subsection (2) of the said section by the operating undertakers to the owning undertakers shall be accompanied by plans sections and particulars of the works ;
 - (b) The said notice shall be given not less than fourteen days before the works are commenced ;
 - (c) Any question which may arise under the said section as modified by this section between the operating undertakers and the owning undertakers shall be determined by arbitration in accordance with section 31 of the Act of 1950 and the proviso to subsection (2) of that section shall not apply :
- (5) Any alteration of any apparatus which the Corporation propose to make pursuant to section 25 (Subsidiary powers) of this Act shall notwithstanding the provisions of the said section 25 be executed by the gas board and the reasonable expenses incurred by the gas board in or in connection with the execution of any such alteration shall be repaid to the gas board by the Corporation :

Provided that when requested so to do by the Corporation the gas board shall commence the execution of any such alteration and shall complete the same

PART VIII
—cont.

with all reasonable dispatch and if the gas board do not commence the execution of any such alteration or complete the same with all reasonable dispatch the Corporation may after giving reasonable notice to the gas board themselves execute such alteration:

- (6) Nothing contained in section 27 (Breaking up and temporary stoppage of streets) of this Act or done thereunder shall take away prejudice or affect any rights or powers of the gas board in or in relation to any apparatus in any street affected by the exercise of any of the powers of that section and notwithstanding anything therein contained the gas board their officers engineers and workmen shall be at liberty at all times to execute and do all such works and things in upon or under any such street as may be necessary for inspecting repairing maintaining renewing or removing any such apparatus:
- (7) Whenever by virtue of the provisions of section 50 (Stopping up and diversion of highways) of this Act any highway or any part of highway in which any apparatus is situate is stopped up or diverted the gas board shall notwithstanding such stopping up or diversion continue to have the same powers and rights in respect of any apparatus remaining in the highway or part of highway so stopped up or diverted as if the same had remained a highway or may and if reasonably so required by the Corporation shall—
- (i) remove the apparatus and relay or replace the same in the highway (if any) substituted for the highway or part of highway so stopped up or diverted or in such other position as may be agreed or determined by arbitration; or
 - (ii) provide and lay or place other apparatus in such substituted highway or in such other position as aforesaid in lieu of such existing apparatus:
- (8) The Corporation shall repay to the gas board the reasonable expenses incurred by the gas board in or in connection with—
- (a) the removal and relaying or replacing of any apparatus or the provision and laying or placing of any new apparatus under the provisions of subsection (7) of this section; and
 - (b) the reasonable costs of and incidental to (i) the cutting off of any apparatus from any other apparatus and (ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection:

Provided that subsections (3) and (4) of section 23 of the Act of 1950 shall so far as applicable extend and apply to any payment to be made by the Corporation under paragraph (a) of this subsection as if the works therein mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in the said subsection (3) for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section 60 (For protection of gas board) of the Tottenham Corporation Act 1952":

- (9) (a) Any difference which may arise between the Corporation and the gas board under this section shall be referred to arbitration;

(b) In settling any difference under this section the arbitrator shall have regard to any duties or obligations which the gas board may be under in respect of any apparatus and may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as may be reasonably possible interference with any purpose for which the apparatus is used.

61. For the protection of the Metropolitan Water Board (hereinafter in this section referred to as "the water board") the following provisions shall unless otherwise agreed in writing between the Corporation and the water board apply and have effect:—

For protection
of Metro-
politan Water
Board.

- (1) In this section unless the context or subject otherwise requires—

"the Act of 1950" means the Public Utilities Street Works Act 1950;

"apparatus" means and includes all or any mains pipes valves or other works or apparatus belonging to the water board;

"in" in a context referring to apparatus includes under across along or upon;

"position" includes depth:

- (2) Nothing in Part II (Common and waste lands) of this Act shall prejudice or affect any rights or powers of the water board in or in relation to any apparatus in the commons:

- (3) In any case in which the Corporation are the operating undertakers within the meaning of section 26 of the Act of 1950 in respect of the construction of undertakers'

PART VIII
—cont.

works authorised by Part IV (Drainage works) of this Act and the water board are the owning undertakers within the meaning of that section in respect of apparatus the said section 26 shall be modified as follows:—

(a) The notice to be given under subsection (2) of the said section by the operating undertakers to the owning undertakers shall be accompanied by plans sections and particulars of the works;

(b) The said notice shall be given not less than fourteen days before the works are commenced;

(c) Any difference which may arise under the said section as modified by this section between the operating undertakers and the owning undertakers shall be determined by arbitration in accordance with section 31 of the Act of 1950 and the proviso to subsection (2) of that section shall not apply:

- (4) Any alteration of any apparatus which the Corporation propose to make pursuant to section 25 (Subsidiary powers) of this Act shall notwithstanding the provisions of the said section 25 be executed by the water board and the reasonable expenses incurred by the water board in or in connection with the execution of any such alteration shall be repaid to the water board by the Corporation:

Provided that when requested so to do by the Corporation the water board shall commence the execution of any such alteration and shall complete the same with all reasonable despatch and if the water board do not commence the execution of any such alteration or complete the same with all reasonable despatch the Corporation may after giving reasonable notice to the water board themselves execute such alteration:

- (5) Nothing contained in section 27 (Breaking up and temporary stoppage of streets) of this Act or done thereunder shall take away prejudice or affect any rights or powers of the water board in or in relation to any apparatus in any street affected by the exercise of any of the powers of that section and notwithstanding anything therein contained the water board their officers engineers and workmen shall be at liberty at all times to execute and do all such works and things in upon or under any such street as may be necessary for inspecting repairing maintaining renewing or removing any such apparatus:

- (6) Whenever by virtue of the provisions of section 50 (Stopping up and diversion of highways) of this Act any highway or any part of highway in which any apparatus is situate is stopped up or diverted the water board shall notwithstanding such stopping up or diversion continue to have the same powers and rights in respect of any apparatus remaining in the highway or part of highway so stopped up or diverted as if the same had remained a highway or may and if reasonably so required by the Corporation shall—

(i) remove the apparatus and relay or replace the same in the highway (if any) substituted for the highway or part of highway so stopped up or diverted or in such other position as may be agreed or determined by arbitration ; or

(ii) provide and lay or place other apparatus in such substituted highway or in such other position as aforesaid in lieu of such existing apparatus :

- (7) The Corporation shall repay to the water board the reasonable expenses incurred by the water board in or in connection with the removal and relaying or replacing of any apparatus or the provision and laying or placing of any new apparatus under the provisions of subsection (6) of this section and the reasonable costs of and incidental to (i) the cutting off of any apparatus from any other apparatus and (ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this subsection :

Provided that subsections (3) and (4) of section 23 of the Act of 1950 shall so far as applicable extend and apply to any payment to be made by the Corporation under this subsection as if the works hereinbefore in this subsection mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in the said subsection (3) for the words " specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority " there were substituted the words " agreed or settled by arbitration under section 61 (For protection of Metropolitan Water Board) of the Tottenham Corporation Act 1952 " :

- (8) (a) The water board shall not be entitled to any payment in connection with the exercise of the powers of the said section 50 of this Act if the existing apparatus of the water board was laid or placed within two years immediately preceding the making of an application

PART VIII
—cont.

under the said section 50 and if notice in writing of their intention to exercise the powers of the said section 50 was given by the Corporation to the water board within eight days from the relevant date and within twenty-nine days from the relevant date plans of the proposals of the Corporation were furnished by them to the water board and the proposals of the Corporation were carried out in accordance with such plans or without any departure therefrom materially affecting the water board :

Provided that nothing in this subsection shall apply to any apparatus laid or placed as emergency works within the meaning of the Act of 1950 ;

(b) For the purposes of this subsection " the relevant date " means the date on which the intention to lay or place the apparatus was signified to the Corporation by the submission of a plan and section if the laying or placing of the apparatus was a work to which section 3 of the Act of 1950 applied or by notice under section 6 of that Act if such laying or placing was not such a work :

(9) (a) Any difference which may arise between the Corporation and the water board under this section shall be referred to arbitration ;

(b) In settling any difference under this section the arbitrator may if he thinks fit require the Corporation to execute any temporary or other works so as to avoid so far as it may be reasonably possible interference with any purpose for which the apparatus is used.

PART IX

GENERAL

Recovery of
deposit under
Lands Clauses
Consolidation
Act 1845.

62. Notwithstanding anything contained in the Lands Clauses Consolidation Act 1845 it shall be lawful for the High Court at any time not being less than twelve years after any sum has been deposited by the Corporation in the bank in pursuance of section 76 of that Act or deposited by the Corporation in the bank by way of security in pursuance of section 85 of that Act to order upon application by the Corporation that the money so deposited or the fund in which the sum shall have been invested together with the accumulations thereof shall be repaid or transferred to the Corporation :

Provided that upon the application of any party making claim to the money deposited as aforesaid or any part thereof or to the lands in respect whereof the same shall have been deposited or any part of such lands or any interest in the same the High

Court may order such money as has been repaid or transferred to the Corporation under the provisions of this section or any part thereof to be paid to the person making such claim and may make such other order in the premises as to the court shall seem fit.

PART IX
—cont.

63.—(1) For the purposes of this Act the expression “the appointed day” means such day as may be fixed by resolution of the council subject to and in accordance with the provisions of this section. The appointed day.

(2) Different days may be fixed under this section for the purpose of different provisions of this Act.

(3) The Corporation shall cause to be published in a local newspaper circulating in the borough notice—

(a) of the passing of any such resolution and of the date fixed thereby ; and

(b) of the general effect of the provisions of this Act coming into operation as from that date ;

and the date so fixed shall not be earlier than the expiration of one month from the date of publication of the said notice.

(4) Either—

(a) a copy of any such newspaper containing any such notice ; or

(b) a photostatic or other reproduction certified by the town clerk to be a true reproduction of a page of any such newspaper bearing the date of its publication and containing any such notice ;

shall be evidence of the publication of the notice and of the date of the publication.

64. Proceedings in respect of an offence created by or under this Act shall not without the written consent of the Attorney-General be taken by any person other than a party aggrieved or the Corporation. Restriction on right to prosecute.

65.—(1) Section 300 of the Act of 1936 shall apply with respect to appeals to a court of summary jurisdiction under any enactment in this Act as it applies with respect to such appeals under any enactment in that Act and sections 301 and 302 of that Act shall apply accordingly. Appeals.

(2) Where any requirement refusal or other decision of the Corporation against which a right of appeal is conferred by this Act—

(a) involves the execution of any work or the taking of any action ; or

PART IX
—cont.

- (b) makes it unlawful for any person to carry on any business which he was lawfully carrying on up to the time of the requirement refusal or decision or to use any premises for any purpose for which they were lawfully used up to that time ;

then until the time for appealing has expired or when an appeal is lodged until the appeal is disposed of or withdrawn or fails for want of prosecution—

- (i) no proceedings shall be taken in respect of any failure to execute the work or take the action nor shall the Corporation themselves execute the work or take the action ; and
- (ii) that person may carry on that business and use those premises for that purpose.

Damages and
charges to be
settled by
court.

66. Where any damages expenses or charges are directed or authorised to be paid or recovered in addition to any penalty for any offence in this Act mentioned the amount of such damages expenses or charges in case of dispute respecting the same may be settled and determined by the court before whom any offender is convicted.

Application of
Arbitration
Act 1950.

67. Where under this Act any question or dispute is to be referred to an arbitrator or to arbitration other than questions or disputes to which the provisions of the Lands Clauses Acts apply then unless other provision is made the reference shall be to a single arbitrator to be agreed upon between the parties to the question or dispute or in default of such agreement appointed on the application of either party by the President of the Institution of Civil Engineers and subject as aforesaid the provisions of the Arbitration Act 1950 shall apply to any such arbitration.

Compensation
how to be
determined.

68. When any compensation costs damages or expenses is or are by this Act directed to be paid and the method for determining the amount thereof is not otherwise provided for such amount shall in case of dispute be ascertained in the manner provided by subsection (2) of section 278 of the Act of 1936.

Inquiries by
Ministers.

69. The Minister the Minister of Transport or the Minister of Agriculture and Fisheries as the case may be may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or the giving of consents or approvals under this Act as if such powers were conferred by and such consents or approvals were required to be given under the Act of 1933 and subsections (2) to (5) of section 290 of that Act shall apply accordingly.

70.—(1) The sections of the Act of 1936 hereinafter mentioned shall have effect as if they were re-enacted in this Act and in terms made applicable thereto (that is to say):—

PART IX
—cont.

Application of
provisions of
Act of 1936.

- Section 271 (Interpretation of “provide”);
- Section 275 (Power of local authority to execute certain work on behalf of owners or occupiers);
- Section 276 (Power of local authority to sell certain materials);
- Section 277 (Power of councils to require information as to ownership of premises);
- Section 283 (Notices to be in writing; forms of notices &c.);
- Section 284 (Authentication of documents);
- Section 285 (Service of notices &c.);
- Section 286 (Proof of resolutions &c.);
- Section 287 (Power to enter premises);
- Section 288 (Penalty for obstructing execution of Act);
- Section 289 (Power to require occupier to permit works to be executed by owner);
- Section 291 (Certain expenses recoverable from owners to be a charge on the premises: power to order payment by instalments);
- Section 292 (Power to make a charge in respect of establishment expenses);
- Section 293 (Recovery of expenses &c.);
- Section 294 (Limitation of liability of certain owners);
- Section 295 (Power of local authority to grant charging orders);
- Section 296 (Summary proceedings for offences);
- Section 297 (Continuing offences and penalties);
- Section 299 (Inclusion of several sums in one complaint &c.);
- Section 304 (Judges and justices not to be disqualified by liability to rates);
- Section 328 (Powers of Act to be cumulative);
- Section 329 (Saving for certain provisions of the Land Charges Act 1925):

PART IX
—cont.

Provided that—

- (a) the said sections 277 287 289 291 292 294 295 and 329 shall only apply to the provisions contained in Part IV (Drainage works) Part V (Sanitation and buildings) and Part VI (Smoke nuisance) of this Act; and
- (b) the said section 293 shall not apply to section 53 (Acquisition and disposal of kitchen waste) of this Act.

(2) The following sections of the Act of 1936 shall extend and apply in relation to any local Act for the time being in force in the borough as if such sections were re-enacted in that local Act and in terms made applicable thereto (that is to say):—

Section 283 (Notices to be in writing; forms of notices &c.);

Section 285 (Service of notices &c.).

Saving for
town and
country
planning.

71. Section 25 (Subsidiary powers) of this Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act 1947 for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Repeals.

72.—(1) The following enactments are hereby repealed:—

Section 85 (Height of chimneys) of the Act of 1890;

Section 20 (Purchase of common and other rights) of the
Tottenham Urban District Council Act
1900.

(2) If the Corporation make byelaws under the Act of 1936 regulating the dimensions of rooms the provisions of section 92 (Height of rooms) of the Act of 1890 shall be repealed from the date of confirmation of such byelaws.

(3) If the Corporation make byelaws under the Act of 1936 regulating the construction of hearths the provisions of section 93 (Fireplaces of buildings to have hearths of certain dimensions) of the Act of 1890 shall be repealed from the date of confirmation of such byelaws.

Costs of Act.

73. The costs charges and expenses preliminary to and of and incidental to the preparing applying for obtaining and passing of this Act as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation.

15 & 16 GEO. 6
& 1 ELIZ. 2

*Tottenham Corporation
Act, 1952*

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SCHEDULES

THE FIRST SCHEDULE

LOCAL ACTS

PART I

ACTS

Session and chapter	Short title
51 & 52 Vict. c. clxxxvii ...	Tottenham Local Board (Division of District) Act 1888.
53 & 54 Vict. c. ccxliv ...	Tottenham Local Board Act 1890.
54 & 55 Vict. c. ccv ...	Tottenham and Wood Green Sewerage Act 1891.
63 & 64 Vict. c. cclxxxiv ...	Tottenham Urban District Council Act 1900.

PART II

ORDERS

Session and chapter	Short title	Order thereby confirmed
2 Edw. 7. c. lxxx.	Local Government Board's Provisional Orders Confirmation (No. 3) Act 1902.	Tottenham Order 1902.
7 Edw. 7. c. clxiii.	Local Government Board's Provisional Orders Confirmation (No. 13) Act 1907.	The Counties of London and Middlesex (Hackney and Tottenham) Order 1907.
17 & 18 Geo. 5. c. xxxiv.	Ministry of Health Provisional Orders Confirmation (No. 5) Act 1927.	Tottenham Order 1927.

THE SECOND SCHEDULE

FEES FOR BUILDING INSPECTION

PART I

FEES FOR NEW BUILDINGS

	£	s.	d.
For every building not exceeding 400 square feet in area and of one storey only in height	1	10	0
For every additional square of 100 feet or fraction of such square		5	0
And for every additional storey	10	0	

PART II

FEES FOR ADDITIONS OR ALTERATIONS

For every addition or alteration made to any building after the roof thereof has been covered in the fee shall be half of the fee charged in the case of a new building.

For inspecting the arches or stone floors over or under public ways 1 0 0

For inspecting the formation of openings in party walls 1 0 0

No fee under Part II of this schedule shall exceed £20.

In this schedule "area" shall include the area of any attached building.

Table of Statutes referred to in this Act other than those referred to in the First Schedule

Short title	Session and chapter
Lands Clauses Consolidation Act 1845	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act 1845	8 & 9 Vict. c. 20.
Towns Improvement Clauses Act 1847	10 & 11 Vict. c. 34.
Lands Clauses Consolidation Acts Amendment Act 1860	23 & 24 Vict. c. 106.
Metropolitan Commons Act 1866	29 & 30 Vict. c. 122.
Railway Companies Act 1867	30 & 31 Vict. c. 127.
Metropolitan Commons Act 1869	32 & 33 Vict. c. 107.
Public Health Act 1875	38 & 39 Vict. c. 55.
Telegraph Act 1878	41 & 42 Vict. c. 76.
Summary Jurisdiction Act 1879	42 & 43 Vict. c. 49.
Electric Lighting Act 1882... ..	45 & 46 Vict. c. 56.
Metropolitan Commons Supplemental Act 1882	45 Vict. c. iv.
Electric Lighting (Clauses) Act 1899	62 & 63 Vict. c. 19.
Acquisition of Land (Assessment of Compensation) Act 1919	9 & 10 Geo. 5. c. 57.
London Traffic Act 1924	14 & 15 Geo. 5. c. 34.
Land Charges Act 1925	15 Geo. 5. c. 22.
Public Health Act 1925	15 & 16 Geo. 5. c. 71.
Local Government Act 1929	19 & 20 Geo. 5. c. 17.
Road Traffic Act 1930	20 & 21 Geo. 5. c. 43.

Short title	Session and chapter
Land Drainage Act 1930	20 & 21 Geo. 5. c. 44.
Summary Jurisdiction (Appeals) Act 1933 ...	23 & 24 Geo. 5. c. 38.
Local Government Act 1933	23 & 24 Geo. 5. c. 51.
Public Health Act 1936	26 Geo. 5. & 1 Edw. 8. c. 49.
Housing Act 1936	26 Geo. 5. & 1 Edw. 8. c. 51.
Food and Drugs Act 1938... ..	1 & 2 Geo. 6. c. 56.
Middlesex County Council Act 1944	7 & 8 Geo. 6. c. xxi.
Local Authorities Loans Act 1945	8 & 9 Geo. 6. c. 18.
Borrowing (Control and Guarantees) Act 1946... ..	9 & 10 Geo. 6. c. 58.
Transport Act 1947	10 & 11 Geo. 6. c. 49.
Town and Country Planning Act 1947	10 & 11 Geo. 6. c. 51.
Lands Tribunal Act 1949	12 & 13 Geo. 6. c. 42.
National Parks and Access to the Countryside Act 1949	12 13 & 14 Geo. 6. c. 97.
Arbitration Act 1950	14 Geo. 6. c. 27.
Public Utilities Street Works Act 1950	14 Geo. 6. c. 39.
Middlesex County Council Act 1950	14 & 15 Geo. 6. c. lii.

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15 & 16 GEO. 6
& 1 ELIZ. 2

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